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(King County Superior Court No. 19-2-25729-6)

IN THE COURT OF APPEALS
OF THE STATE OF WASHINGTON
DIVISION I

BOBBY KITCHEON, ET AL., Plaintiffs-Respondents

v.

CITY OF SEATTLE, Defendant-Petitioner.

BRIEF OF *AMICI CURIAE* NORTHWEST JUSTICE PROJECT, COLUMBIA LEGAL SERVICES, UCI CIVIL RIGHTS LITIGATION CLINIC, AND PROFESSOR ERWIN CHEMERINSKY IN SUPPORT OF RESPONDENTS

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I. STATEMENT OF THE CASE

These *Amici* adopt the statement of the case in the brief of the Respondents.

II. IDENTITY AND INTEREST OF THE AMICI

The Northwest Justice Project ("NJP") is the largest statewide, publicly-funded provider of civil legal services in Washington, including in Seattle, Washington. NJP's mission is to seek justice for all low-income people in Washington through high quality legal advocacy that strengthens communities and protects human dignity. NJP routinely represents unhoused individuals regarding their rights to live safely in communities that do not have enough shelter for them to be housed in. Given this dedication of resources, NJP and the communities it serves stand to be directly impacted by a decision of this Court.

Columbia Legal Services ("CLS") is a non-profit civil legal aid organization in Washington State that advocates for laws that advance social, economic, and racial equity for people living in poverty. To this end, CLS engages in impact litigation and policy advocacy, including working for justice on behalf of people who face barriers to housing based on their criminal

records, tenants in immigrant communities, and people who lack shelter. CLS has advocated for an end to sweeps in Seattle and has also done extensive work on behalf of people living in vehicles, including serving as co-counsel in *City of Seattle v. Long*, 198 Wn.2d 136, 493 P.3d 94 (2021). In *Long*, the Washington Supreme Court held that the impoundment and associated impound costs for towing an individual's vehicular home were constitutionally excessive. *Id.* at 176.

The Civil Rights Litigation Clinic ("CRLC") at the University of California Irvine Law School is a pro bono legal services clinic dedicated to representing underserved communities in civil rights and human rights cases globally. CRLC is actively involved in multiple pending cases on behalf of unhoused persons, in an effort to raise awareness and codify legal protections, and to better ensure that those without permanent shelter may access the courts, social services, employment, health care, and equal rights under the law.

Erwin Chemerinsky is Dean and Jesse H. Choper Distinguished Professor of Law, University of California, Berkeley School of Law. His writing and teaching focuses on

constitutional law, including the issues raised by this case. He is the author of 19 books, including leading casebooks and treatises on constitutional law and federal jurisdiction.

III. INTRODUCTION

According to the Washington State's Supreme Court, "In no area is a citizen more entitled to his privacy than in his or her home." *State v. Young*, 123 Wn.2d 173, 185, 867 P.2d 593 (1994). Historically, the home has always been regarded as a highly private place. To reflect this, the Washington state constitution, like many other state constitutions, affords rigorous constitutional privacy protections to the home, which are more protective than the Fourth Amendment. Wash. CONST. art. 1, § 7; *Miller v. United States*, 357 U.S. 301, 307, 78 S. Ct. 1190 (1958). *See also* Cal. CONST. art. 1, § 1 (providing that acquiring, possessing, and protecting property is among the people's inalienable rights); Mont. CONST. art. 2, § 10 ("The right of individual privacy is essential to the well-being of a free society and shall not be infringed without the showing of a

compelling state interest"); Alaska CONST. art. 1, § 22 (providing that the right to privacy is recognized and shall not be infringed); Fla. CONST. art. 1, § 23; Ariz. CONST. art. 2, § 8; La. CONST. art. 1, § 5; Haw. CONST. art, 1, §7; Ill. CONST. art. 1, § 6.

Moreover, because of the fundamental protections afforded to where and how people make shelter—one of our most basic human needs—the term "home" includes transitory and impermanent dwellings. *State v. Pippin*, 200 Wn. App. 826, 845, 403 P.3d 907 (2017). Due to misfortunes and barriers to permanent housing, tents and other forms of temporary housing are the last "shred of space" where many houseless people may exercise personal autonomy, free from the eyes of the public. *Id.* at 841.

Acknowledging that these most basic needs transcend state borders, the holding in *Pippin* is not unique to Washington, but in line with case law in other states and with Ninth Circuit jurisprudence. *See United States v. Gooch*, 6 F.3d 673 (9th Cir. 1993) (acknowledging that the Fourth Amendment protected

defendant's right to privacy over his impermanent structure); *State v. Pruss*, 145 Idaho 623, 181 P.3d 1231 (2008) (recognizing that the defendant had a reasonable expectation of privacy in his temporary structure under Fourth Amendment and the Idaho Constitution); *People v. Schafer*, 946 P.2d 938 (Colo. 1997) (granting the defendant a reasonable expectation of privacy in a tent which he pitched on publicly accessible vacant land); *People v. Hughston*, 168 Cal. App. 4th 1062, 85 Cal. Rptr. 3d 890 (2008) (granting the defendant a reasonable expectation of privacy in a tarp structure); *Alward v. State*, 112 Nev. 141, 912 P.2d 243 (1996) (granting the defendant a legitimate expectation of privacy in a tent located on a public campground), *overruled on other grounds by Rosky v. State*, 121 Nev. 184, 111 P.3d 690 (2005); *Haley v. State*, 696 N.E.2d 98, 101 (Ind. Ct. App. 1998) (extending constitutional protections of "transitionary homes" to the defendant's tent).

Further, the practical realities of life for the houseless population warrant privacy protections for temporary housing,

including tents. *See* Ben A. McJunkin, *The Negative Right to Shelter*, 111 Calif. L. Rev. 1633 (2023); Hannah Kieschnick, *A Cruel and Unusual Way to Regulate the Homeless*, 70 Stan. L. Rev. 1569 (2018). Unhoused persons most often find themselves at the intersection of poverty, racial inequality, and a lack of access to social services and consistent, quality healthcare. Depriving these members of our society a right to privacy in their dwelling – because of the non-traditional or temporary nature – is an affront to their dignity, is inconsistent with their equal rights under the law, and risks imposing a cost from which most will be unable to recover.

IV. ARGUMENT

A. For Centuries, the Right to Privacy in What is Regarded as a Home has been Lauded as a Fundamental Tenet of Liberty.

The right to privacy in one's home can be traced back to the earliest days of the common law. *Miller*, 357 U.S. at 307. English common law recognized the right to privacy in one's home as early as 1604 when an English court observed "the

house of every one is to him as his castle and fortress, as well for his defense against injury and violence, as for his repose." *Wilson v. Layne*, 526 U.S. 603, 610, 119 S. Ct. 1692, 1697, 143 L. Ed. 2d 818 (1999) (citing *Semayne's Case*, (1604) 77 Eng. Rep. 194, 194-95 (K.B.); *see also* Thomas K. Clancy, *The Framer's Intent: John Adams, His Era, and the Fourth Amendment*, 86 Ind. L.J. 979, 1000 (2011) ("[O]ne of the most essential branches of English liberty is the freedom of one's house. A man's house is his castle; and whilst he is quiet, he is well guarded as a prince in his castle."). With jurisprudence dating back over four centuries, it has become implicit in "the concept of ordered liberty" that the "knock at the door, whether by day or night, as a prelude to a search, without authority of law but solely on the authority of the police, [does] not need the commentary of recent history to be condemned as inconsistent with the conception of human rights enshrined in the history and the basic constitutional documents of English-speaking peoples."

Wolf v. Colorado, 338 U.S. 25, 27-28, 69 S. Ct. 1359, 93 L. Ed. 1782 (1949).

The common law respect for the sanctity of the home has been adopted into the Fourth Amendment of the Constitution since the inception of the Republic. *Layne*, 526 U.S. at 610. "The right of the people to be secure in their persons, papers, and effects, against unreasonable searches and seizures, shall not be violated." U.S. CONST. amend. IV. The United States Supreme Court has explicitly held that among the privacy protections enumerated within the Fourth Amendment, none is more secure than the sanctity of the home. *Payton v. New York*, 445 U.S. 573, 589, 100 S. Ct. 1371, 63 L. Ed. 2d 639 (1980). The Court has articulated that under the Fourth Amendment, a "dwelling is the archetype of the privacy protections" and the "physical entry of the home is the chief evil [to] which [the Fourth Amendment] is directed." *Id.* at 585, 587; *see also Lange v. California*, 141 S. Ct. 2011, 210 L. Ed. 2d 486 (2021); Stephanie M. Stern, *The*

Inviolate Home: Housing Exceptionalism in the Fourth Amendment, 95 Cornell L. Rev. 905 (2010).

However, given the inalienable nature of the right, the cloak of the Fourth Amendment's protections are not dependent upon the nature of the property at issue, rather to what individuals "seek to preserve as private, even in an area accessible to the public[.]" *Katz v. United States*, 389 U.S. 347, 352, 88 S. Ct. 507, 19 L. Ed. 2d 576 (1967) (citing *Ex parte Jackson*, 96 U.S. 727, 733, 24 L. Ed. 877 (1967) (likening the privacy protections afforded to a sealed letter in the mail to the same letter "retained by the parties . . . in their own domiciles")) (finding a right to privacy in a phone call made in a public phone booth). It is for this reason that the firm protections of the Fourth Amendment may only be stripped in the most "exigent circumstances," which includes only a narrow set of conditions. *See, e.g., Lange*, 141 S. Ct. at 2017; *Riley v. California*, 573 U.S. 373, 402, 134 S. Ct. 2473, 189 L. Ed. 2d 430 (2014); *Kentucky*

v. King, 563 U.S. 452, 460, 131 S. Ct. 1849, 179 L. Ed. 2d 865 (2011).

B. The Constitutions of Washington and Other States Afford More Rigorous Privacy Protections than the Text of the Fourth Amendment.

It is well settled that states have the power as a matter of law to impose greater restrictions on police activity than the federal constitution. *Oregon v. Hass*, 420 U.S. 714, 719, 95 S. Ct. 1215, 43 L. Ed. 2d 570 (1975); *Katz*, 389 U.S. at 351 n.7. Several states, including Washington, have adopted state constitutions that guarantee explicit privacy protections beyond the Fourth Amendment. *See, e.g.*, *State v. Simpson*, 95 Wn.2d 170, 177, 622 P.2d 1199 (1980); *State v. Glass*, 583 P.2d 872, 879 (Alaska 1978); *State v. Goetz*, 345 Mont. 421, 427, 191 P.3d 489 (2008); *White v. Davis*, 13 Cal. 3d 757, 533 P.2d 222, 120 Cal. Rptr. 95 (1975).

Article 1, section 7 of the Washington State Constitution guarantees an express right to privacy by providing that "[n]o

person shall be disturbed in his private affairs, or his home invade, without authority of law." *Simpson*, 95 Wn.2d at 178; *see Glass*, 583 P.2d at 872. Although the drafters of Article 1, Section 7 initially considered a different state provision akin to the language of the Fourth Amendment, the drafters ultimately opted to adopt the current controlling provision instead. *Simpson*, 95 Wn.2d at 178. By intentionally going further that the Fourth Amendment's language, the framers of the state constitution intended Article 1, Section 7 to guarantee privacy protections beyond the federal Constitution. *Id.* at 179; *see State v. Myrick*, 102 Wn.2d 506, 511, 688 P.2d 151 (1984) (observing that unlike the Fourth Amendment inquiry on whether an individual possessed a "reasonable expectation of privacy," the state inquiry under Article 1, Section 7 is more protective of privacy rights by focusing on the "privacy interest which citizens of this state have held, and should be entitled to hold, safe from governmental trespass absent a warrant"); *see also State v. Jorgenson*, 179 Wn.2d 145, 148, 312 P.3d 960 (2013) (reasoning

that interpreting the state constitution independent from the federal constitution is merited because the Washington Constitution is "patterned primarily on other state constitutions, which themselves draw from prerevolutionary common law").

The Washington Supreme Court held that no privacy interest is entitled greater protection than unwarranted intrusion in the home. *Young*, 123 Wn.2d at 185. The Court has repeatedly observed that an individual is entitled to maximum privacy rights when residing within their dwelling and "the closer officers come to intrusion into a dwelling, the grater the constitutional protection." *State v. Chrisman*, 100 Wn.2d 814, 820, 676 P.2d 419 (1984); *Young*, 123 Wn.2d at 185.

C. The Holding in *Pippin*, that a Tent Constitutes a Home for the Purposes of the Right to Privacy, is Consistent with the Jurisprudence in other State Courts and the Ninth Circuit.

In *Pippin*, the Washington Court of Appeals acknowledged the privacy rights of individuals living in homes that are not traditional brick-and-mortar structures. *Pippin*, 200 Wn. App. at 845. William Pippin lived in a tent in a downtown

Vancouver encampment; his tent was constructed out of a tarp draped between the guard rail of a public road and a chain-link fence that was on private property. *Id.* at 831. In conducting a warrantless search of Pippin's tent, police officers lifted the tarp to see inside. *Id.* Pippin argued that the officers' lifting the tarp and looking inside was an unconstitutional search under the Fourth Amendment to the United States Constitution and Article I, section 7 of the Washington Constitution. *Id.* at 832. The Washington Court of Appeals agreed with Pippin, holding that his tent and its contents were protected from warrantless invasion by the Washington Constitution. *Id.* at 833. The Court noted that the features of Pippin's tent that were similar to those of a conventional home: "sleeping under the comfort of a roof and enclosure," "separation and refuge from the eyes of the world," and a "space to exercise autonomy over the personal." *Id.* at 840-841.

The *Pippin* court makes clear that the inquiry under article 1, section 7 asks "whether the challenged action potentially

reveals intimate details of a person's life." *Id.* at 838. The *Pippin* court reasoned that a tent can be the "sort of closed-off space that typically shelters the intimate and discrete details of personal life protected by article 1, section 7," where one might secure their "most personal possessions and conduct," and "retreat from the outside world." *Id*. at 839-841. The constitutional right to privacy under article I, section 7 of the Washington State Constitution applies to tents and other dwellings occupied by the unhoused. *Id.* at 845.

In *Gooch*, the Ninth Circuit, finding that the Fourth Amendment protected an individual's privacy interests a tent regardless of whether it is pitched on public land or private property, and that the mobility of a tent, alone, is insufficient to reduce privacy rights. *Gooch*, 6 F.3d at 677.

The Supreme Court of Idaho in *Pruss* held that the defendant had a reasonable expectation of privacy in his "hooch" (a frame structure in the woods under which a backpacking tent was erected). *Pruss*, 145 Idaho at 626.

> The respect for the sanctity of the home does not depend upon whether it is a mansion or hut, or whether it is a permanent or a temporary structure. As stated eloquently by William Pitt, "'The poorest man may in his cottage bid defiance to all the forces of the Crown. It may be frail; its roof may shake; the wind may blow through it; the storm may enter; the rain may enter; but the King of England cannot enter—all his force dares not cross the threshold of the ruined tenement!'"

Id. (citing *Miller,* 357 U.S. at 307 (quoting remarks attributed to William Pitt)), *cited with approval in State v. Beck*, 157 Idaho 402, 406, 336 P.3d 809 (2014).

In *Hughston,* the California Court of Appeals similarly found a reasonable expectation of privacy in a structure identical to a camping tent - a temporary structure designed to provide its occupants a degree of protection from the elements and privacy while staying outdoors. *Hughston*, 168 Cal. App. 4th. at 1062, *cited with approval in People v. Nishi*, 207 Cal. App. 4th 954, 962, 143 Cal. Rptr. 3d 882 (2012).

Further, an Indiana Court similarly held that reasonable expectations of privacy extend to those who choose to make their "transitory home" a tent. *Haley,* 696 N.E.2d at 101.

The Supreme Court of Colorado in *Schafer* found a reasonable expectation of privacy in a tent and the personal effects therein, even where the tent was located on private land that was publicly accessible. *Schafer*, 946 P.2d at 940, *cited with approval in People v. Galvadon*, 103 P.3d 923, 931 (2005).

Further, the Supreme Court of Nevada Court in *Alward* used analogous reasoning to the Courts in *Gooch*, *Schafer* and *Pippin*, upholding the expectation of privacy in a tent. *Alward* 112 Nev. at 184. "Indeed, holding that temporary residence at a hotel ensures Fourth Amendment protections, while temporary residence in a tent does not, would limit the protections of the Fourth Amendment to those who could afford them." *Id.* at 149 (citing *Stoner v. California*, 376 U.S. 483, 490, 84 S. Ct. 889, 11 L. Ed. 2d 856 (1964); *Phillips v. State*, 106 Nev. 763, 801 P.2d 1363 (1990)).

D. Privacy Rights Regarding Personal Property are Not Different for the Unhoused.

This Court has found that article 1, section 7 of the Washington Constitution provides strong personal property protections. *See State v. Evans*, 159 Wn.2d 402, 409, 150 P.3d 105 (2007) (holding that society recognizes a general expectation of privacy in briefcases); *State v. Boland*, 115 Wn.2d 571, 576, 800 P.2d 1112 (1990) (holding that average persons would find it reasonable to believe the garbage they place in their trash cans will be protected from warrantless intrusion). Further, in *State v. Wyatt*, 2015 Wash. App. Lexis 848, 10 (2015) (unpublished), the Court of Appeals decided that a warrantless search of closed containers found inside a tent in a city park while the defendant was away violated both article I, section 7 and the Fourth Amendment.

In *Gooch,* the Ninth Circuit reasoned that tents can be protected as a permanent structure, or analogized to "a (large), movable container." *Gooch*, 6 F.3d at 677. Thus, while primarily

a dwelling, a tent is also a type of closed container—a closed personal belonging which stores items like those found in a briefcase, suitcase, or small container. Just as individuals expect personal property inside of their closed containers to remain private and immune from intrusion, unhoused individuals have a reasonable expectation of privacy in their tents, which, like closed containers, should be safe from government intrusion. In fact, the houseless have limited opportunities to create zones of privacy for themselves, and their privacy rights should be protected as fiercely as the rest of the population's.

The Fourth Amendment's protection also applies to personal property. In *Arkansas v. Sanders*, 442 U.S. 753, 766, 99 S. Ct. 2586, 61 L. Ed. 2d 235 (1979), the Court refused to extend the "automobile exception" to the warrant requirement to luggage seized from an automobile. The *Sanders* Court held that luggage may only be searched pursuant to a warrant because there is a "legitimate expectation of privacy in the contents of a trunk or suitcase accompanying or being carried by a person." *Id.*; *see*

also United States v. Chadwick, 433 U.S. 1, 97 S. Ct. 2476, 53 L. Ed. 2d 538 (1977) (holding that defendant manifested an expectation of privacy by placing personal effects inside a double-locked footlocker).

Other courts have held these protections apply to the personal property of the houseless. In *United States v. Fultz*, 146 F.3d 1102, 1105 (9th Cir. 1998), the Ninth Circuit held that a houseless defendant had a reasonable expectation of privacy in his cardboard boxes, reasoning that "the boxes of homeless people contain the same kinds of personal belongings as the valises, suitcases, and footlockers of those who have the money to buy the latter kind of more expensive containers." *See also State v. Mooney*, 218 Conn. 85, 588 A.2d 145 (1991) (holding that a houseless defendant had a reasonable expectation of privacy in his duffel bag found in the area he regarded as a home). In *Lavan v. City of L.A.*, 693 F.3d 1022, 1032 (9th Cir. 1998), the Ninth Circuit extended protection to the unattended property of the houseless by holding that seizure of houseless property by

city officials violated the Fourth Amendment, even though the property was temporarily unattended. *See also Garcia v. City of L.A.*, 11 F.4th 1113 (9th Cir. 2021) (holding that an ordinance permitting removal of unattended bulky items possessed by the homeless was unconstitutional); *Pottinger v. Miami*, 810 F. Supp. 1551 (Fla. S.D.C. 1992) (holding that the property of the houseless is due no less protection under the Fourth Amendment than that of the rest of society).

E. The Practical Realities of Life for the Unhoused Population Underscores the Importance of their Right to Privacy in their Homes.

In *Illinois v. McArthur*, 531 U.S. 326, 340, 121 S. Ct. 946, 148 L. Ed. 2d 838 (2001) (Stevens, J., dissenting), Justice Stevens urged for "plac[ing] a higher value on the sanctity of the ordinary citizen's home . . . — whether the home be a humble cottage, a secondhand trailer, or a stately mansion." In the privacy context, the Supreme Court has similarly warned against drawing "constitutional distinction[s]…" that necessarily "turn on judgments about the durability… [or] worth[]" of places where

government intrusions occur, and has cautioned that "the Fourth Amendment protects all persons, not just those with the resources" to house their property under the types of conditions familiar to decision-makers. *United States v. Ross*, 456 U.S. 798, 802, 102 S. Ct. 2157, 72 L. Ed. 2d 572 (1982). Remembering that the Fourth Amendment "protects people, not places," it is worth noting here that the unhoused population is very often in dire need of such protection. *See Alward*, 112 Nev. at 149; *Rakas v. Illinois*, 439 U.S. 128, 143, 99 S. Ct. 421, 58 L. Ed. 2d 387 (1978) (interpreting *Katz*).

Daily, almost half a million Americans are without shelter, and more than twenty million (about one in sixteen people) are expected to experience homelessness in their lifetime. McJunkin, *supra*, at 133-34. This number is expected to rise as Americans face an increasing deficit of affordable housing. *Id.* Unfortunately, many municipalities have responded by criminalizing homelessness, which only adds to our society's

problems concerning mass incarceration, poverty, and racial inequality.

It is estimated that 77 percent of homeless people, to protect their safety and vital social support networks, would choose to live without shelter rather than stay in temporary emergency shelters. *Id.* at 164. A myriad of issues makes shelters an untenable solution for many unhoused individuals, including the threat of violence and the spread of disease. Most temporary emergency shelters are often full, and limit the number of days a person may stay. Most shelters are also segregated by gender, requiring the physical separation of couples and families. *Id.* at 173. Many shelters also impose curfew or lock-out rules, often requiring unhoused persons to be inside the shelter by a certain time, or forfeit their bed (and sometimes their belongings). Although intended for security, these rules often also create unintended barriers to gaining or keeping employment and attending healthcare and social services appointments that are outside the area, occur during non-

traditional business hours, and impose particular problems for those reliant on public transportation. Given these factors, many shelters are not "practically available" under the Eighth Amendment analysis mandated by *Martin v. City of Boise*, 902 F.3d 1031 (9th Cir. 2018), where the Ninth Circuit ruled that the Eighth Amendment prohibits criminalizing urban camping unless alternative shelter is reasonably available. *Id.* Self-sheltering, which ranges from basic acts like using blankets or bedding to setting up temporary tents in public areas, is often the only "practically available" option.

"[R]espect for homeless individuals as persons ought to require us to defer to their intimate personal choices about how best to live their lives in the face of overwhelming constraints." *See* McJunkin, *supra*, at 200. This deeply personal element concerning right-to-shelter litigation is missing from decisions such as *Martin*, as are considerations of human dignity. Laws that criminalize urban camping infringe upon an unhoused person's rights to bodily integrity and personal relationships by

imposing decisions on one of his or her most private choices—whether and when to use available shelter services. *Id.* at 185.

As the *Pippin* court acknowledged, "the realities of homelessness," dictate "that dwelling places are often transient," "precarious," "flimsy," and "vulnerable." 200 Wn. App. at 841. "[T]o call homelessness voluntary, and thus unworthy of basic privacy protections is to walk blind among the realities among us. Worse, such an argument would strip those on the street of the protection given to the rest of us directly because of their poverty. Our constitution means something better." *Id.* at 845.

F. Evictions are Not Analogous to MDAR Obstruction Sweeps and Have No Bearing on the Issues in this Case.

The City argues that the *Pippin* court did not decide the issue of "whether a privacy right would play any role in an eviction." *City of Pasco v. Shaw*, 127 Wn. App. 417, 424, 110 P.3d 1200 (2005). However, the City provides no authority for the proposition that a properly noticed proceeding to evict a person from the privately-owned property of another is parallel

to the sweeping removal without notice of homes and personal property located on public land. The City raises circumstances where under which a tenant has a diminished privacy right when a landlord gives proper notice of an inspection. *Id.* at 424. However, the City's analogy is improper, as again, it fails to link any similarity between a properly noticed inspection of a tenant's home to the Multi-Departmental Administrative Rules' (MDAR)[1] protocol for inspection and entry of an encampment on public property.

The MDAR on its face permits inspection and entry of an encampment on public land *with no notice,* if the encampment is determined to be an obstruction. CP 2131-32; CP 2131-35. Tenant rights are attributed to the legislative policy reflected in the Residential Landlord-Tenant Act of 1973 (RTLA), which requires landlords to a premise inspection right with two days' notice. *Shaw,* 127 Wn. App. at 424. The issue here pertains to

[1] The parties collectively refer to the City's sets of rules, including the FAS Encampment Rule 17-02 as "the MDARs," which are at CP 2129-53.

obstruction sweeps, where the City is not required to give any notice before entering and potentially removing an encampment. Therefore, a tenant's reduced expectation of privacy when an entry is properly noticed by a landlord is not relevant.

V. CONCLUSION

For the reasons stated above, amici urge this Court to affirm the trial court's holding and adopt *Pippin* to find that temporary housing of the houseless are entitled to protection.

Respectfully submitted this 1st day of March, 2024.

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